

ANNEXURE 1 - TENDER ACKNOWLEDGEMENT AND EXECUTION

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Annexure 1

(b) Tender Acknowledgement and Execution

The Tenderer must complete the Tender Acknowledgement and Execution form outlined below, including a register identifying and acknowledging receipt of all of the addenda that have been received through any means as part of this tender process.

Acknowledgement and Execution

- 1) In consideration of Western Power agreeing to consider this Tender Response, we offer to meet the obligations as described in the Tender document on the basis set out in this Tender Response.
- 2) We warrant that we have:
 - (a) The necessary resources, experience, expertise and capacity to execute and complete the WUC; and
 - (b) The statements, representations, claims and assertions made in this Tender Response are true and correct.
- 3) We acknowledge receipt of the following Addenda [#] to [#], the terms of which have been allowed for and incorporated into this Tender Response:
 - (a) Addendum No. [#], dated [insert];

[Note: Proponent to complete list of Addenda]
- 4) If we are appointed as preferred Tenderer as part of this tender process, we agree to enter into good faith negotiations with Western Power with the view to finalising the Contract.
- 5) We acknowledge that Western Power is not liable to us in respect of any error in or omission from or the adequacy of any information supplied to us by Western Power or its agents in any way relating to the RFT.

EXECUTED by [NAME OF PROPONENT]
by being signed by:

Signature of director

Signature of director/secretary

Name of director (please print)

Name of director/secretary (please print)

DATE: